

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

9. MILENA ROBBINS V. RYAN ROBBINS

PFL20140570

Parties appeared for the hearing on February 19, 2026. The court made orders regarding homeschool, a parenting plan, and medication for the minor. The court set a 90-day review hearing for May 28, 2026, at 8:30 AM in Department 5, to review the parenting plan, homeschool, as well as medication compliance. The court directed parties to file and serve supplemental declarations at least 10 days prior to the hearing.

Respondent filed a supplemental declaration on May 7, 2026. It was served on May 7, 2026.

Petitioner filed a supplemental declaration on May 11, 2026. The court has no Proof of Service for this document. The Proof of Service filed on May 11, 2026, reflects service on February 4, 2026, which predates the original hearing in this matter.

The court orders parties to appear for the hearing.

TENTATIVE RULING #9: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

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10. SCOTT RUSSELL V. OLIVIA RUSSELL

23FL0133

Petitioner filed a Request for Order (RFO) on February 26, 2026, to clarify the court's January 8, 2026 orders. Respondent was properly served on March 2, 2026. Petitioner is seeking an order clarifying the exchange days and times for the minors.

Respondent filed a responsive declaration on April 2, 2026. It was served on April 1, 2026. Respondent insists Petitioner's parenting time is Wednesday through Sunday on the 5-day portion of the 2-2-5 schedule.

Respondent filed a further responsive declaration on May 13, 2026. It was served on Petitioner on May 13, 2026.

Petitioner filed a reply declaration on May 14, 2026. It was served on May 14, 2026.

The court has read and considered the filings as outlined above. To clarify, the parties are to use a 2-2-5-5 schedule. Respondent has physical custody of the minors on Monday and Tuesday. Petitioner has physical custody of the minors Wednesday and Thursday. The parties then rotate Friday, Saturday, and Sunday. All exchanges are at school. That includes the transition between Sunday to Monday, Respondent's parenting time begins with the drop off at school. If there is no school, the exchanges are at 11:00 AM at a location agreed upon by the parties.

There is no need for make-up time to be provided. Respondent has received the proper parenting time. The court denies Respondent's request for Family Code section 271 sanctions. The court finds this does not come within the provisions of Family Code section 271. Further, Respondent is not represented by counsel, as such an award of sanctions in the form attorney's fees is improper.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: TO CLARIFY THE COURT'S JANUARY 8, 2026 ORDER - THE PARTIES ARE TO USE A 2-2-5-5 SCHEDULE. RESPONDENT HAS PHYSICAL CUSTODY OF THE MINORS ON MONDAY AND TUESDAY. PETITIONER HAS PHYSICAL CUSTODY OF THE MINORS WEDNESDAY AND THURSDAY. THE PARTIES THEN ROTATE FRIDAY, SATURDAY, AND SUNDAY. ALL EXCHANGES ARE AT SCHOOL. THAT INCLUDES THE TRANSITION BETWEEN SUNDAY TO MONDAY, RESPONDENT'S PARENTING TIME